

		before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions against Defendants are not proper. Accordingly, Defendants' Motion to Compel Physical/Mental Examination is DENIED. Plaintiff to give notice.
6.	30-2025-01494927-CU-PO-NJC Orellana vs. ROSS Stores, Inc.	Before the Court is a Motion to Compel Further Responses to Requests for Production (ROA 43) and a Motion for Relief from Waiver of Objections (ROA 54). On March 23, 2026, Plaintiff Edna Lourdes Orellana ("Plaintiff") filed a Motion to Compel Production of Documents against Defendant Ross Dress for Less, Inc. ("Defendant"). ROA 43. On May 22, 2026, Defendant filed a Motion for Relief from Waiver of Objection. ROA 54. Plaintiff requests that the Court grant its Motion to Compel Further Responses to Production and impose sanctions in the amount of \$1,400 against Defendant and its counsel of record. ROA 43. Defendant requests that the Court deny Plaintiff's Motion and request for sanctions in its entirety. ROA 61. Additionally, Defendant requests that the Court grant its Motion for Relief from Waiver. ROA 54. I. Motion to Compel Production In the interest of reaching a conclusion of the discovery dispute on the merits, the Court exercises its discretion to construe the instant Motion to Compel <i>Further</i> as a Motion to Compel <i>Initial</i>. <i>See infra</i>. Under California Code of Civil Procedure Section 2031.300, if a party to whom a demand for inspection, copying,

testing, or sampling is directed *fails to serve a timely response* to it, the party waives any objection to the demand, including one based on privilege or on the protection for work product. Cal. Civ. Proc. Code § 2031.300(a). The propounding party may move for an order compelling response to the demand. *Id.* at (b).

On November 7, 2025, Plaintiff propounded discovery on Defendant. ROA 43.

After an agreed upon extension, Defendant's responses to Requests for Production were due on January 20, 2026. *Id.* Defendant failed to serve its response until January 21, 2026. *Id.* Defendant's responses to Requests for Production Nos. 9 and 10 were only objections. ROA 66.

At that time, objections were waived by operation of law. ROA 43. With the objections waived, Defendant had not served any substantive responses to Requests Nos. 9 and 10. Under these circumstances, the proper procedural vehicle is a motion to compel responses under Code of Civil Procedure Section 2031.300, rather than a motion to compel further responses.

Accordingly, consistent with the substance of the relief sought and the requirements of Code of Civil Procedure Section 2031.300, the Court construes Plaintiff's Motion to Compel Further Responses as a Motion to Compel Responses and **GRANTS** the motion as so construed.

II. Motion for Relief from Waiver of Objections

California Code of Civil Procedure Section 2031.300 provides that the Court, on motion, may relieve a party from waiver on its determination that both of the following conditions are satisfied: "[t]he party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280"; and "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." Cal. Civ. Proc. Code § 2031.300 (a), (1), (2).

	A person who seeks relief under the theory of excusable neglect must show that the neglect was attributable to an act or omission which might have been committed by reasonably prudent person under the circumstances. <i>Transit Ads, Inc. v. Tanner Motor Livery, Ltd</i>, 270 Cal. App. 2d 275, 279 (1969) (citations omitted). Defendant argues that Defendant's failure to serve timely responses resulted from mistake, inadvertence, and/or excusable neglect. ROA 54. Defendant explains that "[o]n or about May 7, 2026, current counsel discovered the underlying issue stemmed from <i>continued issues</i> between former defense counsel and her legal assistant." ROA 54 (emphasis added). Defendant adds that "during this time [former counsel had] issues with [her] legal assistant and numerous deadlines were missed as a result of those issues." ROA 55. The Court is not persuaded that these circumstances meet the mistake, inadvertence, or excusable neglect standard. Former counsel acknowledges she was experiencing <i>ongoing</i> difficulties with the legal assistant yet, nevertheless, relied on that assistant to complete service and did not verify service had occurred. Accordingly, Defendant has not met both conditions and Defendant's Motion for Relief from Waiver is DENIED. ROA 54. III. Mandatory Sanctions The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or <i>opposes</i> a motion to compel response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2031.300(c). The term "substantial justification" means "a justification that 'is clearly reasonable because it is well grounded in both law and fact.'" <i>In re Marriage of Moore</i>, 102 Cal. App.
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	5th 1275, 1287 (2024) (<i>quoting Doe v. United States Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (<i>citing Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996); <i>See also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i> at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer United States, Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Defendant’s lack of substantial justification sanctions are mandatory. IV. Amount of Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court’s analysis here is reasonableness. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> at 791 (citing <i>Parker supra</i>, 149 Cal. App. 4th at 294). Having weighed the three aforementioned principles, the Court finds that the sanctions sought by the moving party
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		are reasonable. Accordingly, Plaintiff's Motion to Compel Production (ROA 43) is GRANTED. Additionally, Defendant's Motion for Relief from Waiver of Objections (ROA 54) is DENIED and objections are waived by operation of law. Defendant shall produce any and all responsive documents for Request for Production Nos. 9 and 10 without objection no later than July 24, 2026. Additionally, the Court IMPOSES sanctions in the amount of \$1,400 against Klinedinst PC due and payable to Martinian Lawyers Inc. within thirty (30) days of receiving notice. Plaintiff to give notice.
7.	<u>30-2022-01274513-CU-EI-CJC</u> Busk vs. Yorba Linda Water District	